

22STCV21799 22STCV21799

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-17

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Case Number: 22STCV21799 Hearing Date: September 17, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 17, 2026 TRIAL DATE: Trial complete

CASE: 3800 West Sixth Street, LLC, et al. v. Steven C. Kim., et al.

CASE NO.: 22STCV21799

MOTION FOR ATTORNEYS' FEES

MOVING PARTY/PARTIES: Defendants Susan Ahn and Serrano & Sixth LLC

RESPONDING PARTY/PARTIES: Plaintiffs 3800 West Sixth Street, LLC and Leo Lee

PROOF OF SERVICE: Plaintiffs oppose motion on the merits, and thereby waived any procedural objections. (See In re Marriage of Falcone (2008) 164 Cal.App.4th 814, 826.)

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CASE HISTORY:

- July 6, 2022: Complaint filed.
- January 5, 2023: First amended complaint filed.
- November 14, 2024: Defendants' motions for summary judgment denied.

- September 4, 2025: Court trial commenced.
- October 1, 2025: Court trial concluded.
- February 13, 2026: Court issued statement of decision after trial in favor of Defendants.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Defendants Susan Ahn and Serrano & Sixth LLC ("Defendants") prevailed at trial against Plaintiffs 3800 West Sixth Street, LLC and Leo Lee ("Plaintiffs"). Defendants move to recover their attorneys' fees in this case. Plaintiffs oppose the motion.

TENTATIVE RULING:

Defendants' motion for attorneys' fees is DENIED.

Moving party to give notice.

DISCUSSION:

The prevailing party must seek an award of attorneys' fees via a noticed motion, and bears the burden of proof to justify the amount sought. (See Code Civ. Proc., § 1033.5, subd. (c)(5)(A).)

Contractual provision

Defendants contend they are entitled to recover attorneys' fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions. In an action to enforce a contract that authorizes an award of attorneys' fees, the party "prevailing on the contract" is entitled to recover attorneys' fees. (Civ. Code, § 1717.) Here, in the operative first amended complaint, Plaintiffs did not sue Defendants for breach of contract. Plaintiffs sued Defendants for misappropriation of trade secrets, unfair competition, and interference with prospective economic advantage. Plaintiffs did not seek attorneys' fees. (See First Amended Complaint.) As such, Plaintiffs did not sue Defendants on the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, and Defendants did not prevail on a breach of contract claim. Defendants are not entitled to recover attorneys' fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions.

In support of the argument that Defendants are entitled to recover fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, Defendants mischaracterize the holding of *Lerner v. Ward* (1993) 13 Cal.App.4th 155. In that case, the Court of Appeal held that a party cannot recover attorneys' fees based on a contract where the claims on which the party prevailed were tort claims, rather than contract claims. (*Lerner v. Ward* (1993) 13 Cal.App.4th 155, 159.) As such, *Lerner v. Ward* (1993) 13 Cal.App.4th 155 does not support Defendants' argument that Defendants are entitled to recover fees.

Civil Code section 3426.4

Defendants seek attorneys' fees and costs under Civil Code section 3426.4. Civil Code section 3426.4 allows the Court to award reasonable attorney's fees and costs to the prevailing party where the other party has made a claim of misappropriation of trade secrets in bad faith. (Civ. Code, § 3426.4.) Under Civil Code section 3426.4, for a claim to have been made in bad faith, the claim must have been objectively specious, and must have been maintained in subjective bad faith. (Gemini Aluminum Corp. v. California Custom Shapes, Inc. (2002) 95 Cal.App.4th 1249, 1261-1262.) As set forth above, Plaintiffs sued Defendants for misappropriation of trade secrets. Defendants prevailed on that claim. As such, Defendants are entitled to recover fees for defending the claim for misappropriation of trade secrets if the claim was frivolous and Plaintiffs acted in bad faith. As Defendants point out, the Court granted summary adjudication of Plaintiffs' claim for misappropriation of trade secrets. (November 14, 2024 Minute Order.) However, Plaintiffs' claim for misappropriation of trade secrets is not frivolous simply because Defendants prevailed on the claim. Further, Defendants do not address the issue of Plaintiffs' bad faith. The Court does not infer that Plaintiffs acted in bad faith because their claim for misappropriation of trade secrets failed. By Defendants' reasoning, any failed claim is frivolous and in bad faith. Accordingly, Defendants fail to show they are entitled to recover fees under Civil Code section 3426.4.

Accordingly, Defendants' motion for attorneys' fees is DENIED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 17, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 17, 2026 TRIAL DATE: Trial complete

CASE: 3800 West Sixth Street, LLC, et al. v. Steven C. Kim., et al.

CASE NO.: 22STCV21799

MOTION FOR ATTORNEYS' FEES

MOVING PARTY/PARTIES: Defendant Steven C. Kim

RESPONDING PARTY/PARTIES: Plaintiffs 3800 West Sixth Street, LLC and Leo Lee

PROOF OF SERVICE: Plaintiffs oppose motion on the merits, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008) 164 Cal.App.4th 814, 826.)

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CASE HISTORY:

- July 6, 2022: Complaint filed.
- January 5, 2023: First amended complaint filed.
- November 14, 2024: Defendants' motions for summary judgment denied.
- September 4, 2025: Court trial commenced.
- October 1, 2025: Court trial concluded.
- February 13, 2026: Court issued statement of decision after trial in favor of Defendant.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Defendant Steven C. Kim ("Defendant") prevailed at trial against Plaintiffs 3800 West Sixth Street, LLC and Leo Lee ("Plaintiffs"). Defendant moves to recover his attorneys' fees in this case. Plaintiffs oppose the motion.

TENTATIVE RULING:

Defendant's motion for attorneys' fees is DENIED.

Moving party to give notice.

DISCUSSION:

The prevailing party must seek an award of attorneys' fees via a noticed motion, and bears the burden of proof to justify the amount sought. (See Code Civ. Proc., § 1033.5, subd. (c)(5)(A).)

Contractual provision

Defendant contends he is entitled to recover attorneys' fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions. Defendant is not a party to the contract. As a non-signatory to the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, Defendant is entitled to recover fees if Plaintiffs sued Defendant on the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, Defendant prevailed on the breach of contract claim, and Plaintiffs would have had a right to recover fees had Plaintiffs prevailed. (*Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 128-129.) Here, in the operative first amended complaint, Plaintiffs did not sue Defendant for breach of contract. Plaintiffs sued Defendant for misappropriation of trade secrets, breach of fiduciary duty, unfair competition, and interference with prospective economic advantage. Plaintiffs did not seek attorneys' fees. (See First Amended Complaint.) As such, Plaintiffs did not sue Defendant on the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, and Defendant did not prevail on a breach of contract claim. Defendant is not entitled to recover attorneys' fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions.

In support of his argument that Defendant is entitled to recover fees under the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions, Defendant mischaracterizes the holding of *Lerner v. Ward* (1993) 13 Cal.App.4th 155. In that case, the Court of Appeal held that a party cannot recover attorneys' fees based on a contract where the claims on which the party prevailed were tort claims, rather than contract claims. (*Lerner v. Ward* (1993) 13 Cal.App.4th 155, 159.) As such, *Lerner v. Ward* (1993) 13 Cal.App.4th 155 does not support Defendant's argument that Defendant is entitled to recover fees.

Likewise, Defendant's reliance on *Kangarlou v. Progressive Title Co.* (2005) 128 Cal.App.4th 1174 is misplaced. In that case, the Court of Appeal held that a claim for breach of fiduciary duty may be a contract claim or a tort claim and entitlement to attorneys' fees on a claim for breach of fiduciary duty depends on whether the claim is based on contractual duties. (*Kangarlou v. Progressive Title Co.* (2005) 128 Cal.App.4th 1174, 1177.) Plaintiffs' claim for breach of fiduciary duty against Defendant is based on Defendant's fiduciary duty as an attorney. (See First Amended Complaint, ¶ 33.) As such, it is a tort claim, not a contract claim.

Defendant also cites *Wong v. Davidian* (1988) 206 Cal.App.3d 264. In that case, the Court of Appeal held that attorneys' fees are recoverable in an action for reformation of contract. (*Wong v. Davidian* (1988) 206 Cal.App.3d 264, 271.) No such claim is at issue here.

Defendant argues he is entitled to attorneys' fees as a third-party beneficiary of the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions. That is immaterial, as Plaintiffs did not sue Defendant on the Agreement for Purchase and Sale of Real Property and Joint Escrow Instructions. Furthermore, Defendant makes no showing that he is a third-party beneficiary. A third-party beneficiary to a contract may enforce a contract if the third party shows that the third party is likely to benefit from the contract, a motivating purpose of the contracting parties was to provide the third party with a benefit, and permitting the third party to enforce the contract is consistent with the contract's objectives and the contracting parties' reasonable expectations. (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 821.) Defendant fails to address these factors. (See Motion for Attorneys' Fees, pp. 11-12.)

Civil Code section 3426.4

Defendant also seeks attorneys' fees and costs under Civil Code section 3426.4. Civil Code section 3426.4 allows the Court to award reasonable attorney's fees and costs to the prevailing party where the other party has made a claim of misappropriation of trade secrets in bad faith. (Civ. Code, § 3426.4.) Under Civil Code section 3426.4, for a claim to have been made in bad faith, the claim must have been objectively specious, and must have been maintained in subjective bad faith. (*Gemini Aluminum Corp. v. California Custom Shapes, Inc.* (2002) 95 Cal.App.4th 1249, 1261-1262.) As set forth above, Plaintiffs sued Defendant for misappropriation of trade secrets. Defendant prevailed on that claim. As such, Defendant is entitled to recover fees for defending the claim for misappropriation of trade secrets if the claim was frivolous and Plaintiffs acted in bad faith. As Defendant points out, the Court granted summary adjudication of Plaintiffs' claim for misappropriation of trade secrets. (November 14, 2024 Minute Order.) However, Plaintiffs' claim for misappropriation of trade secrets is not frivolous simply because Defendant prevailed on the claim. Further, the Court does not infer that Plaintiffs acted in bad faith because their claim for misappropriation of trade secrets failed. By Defendant's reasoning, any failed claim is frivolous and in bad faith. Accordingly, Defendant fails to show he is entitled to recover fees under Civil Code section 3426.4.

Code of Civil Procedure section 2033.420

"Under Code of Civil Procedure section 2033.420, a party who unreasonably denies a request for admission may be required to pay the requesting party its reasonable expenses (including reasonable attorney's fees) incurred in proving the truth of the matter at trial." (In re Estate of Manuel (2010) 187 Cal.App.4th 400, 402.) Defendant argues that Plaintiffs unreasonably denied certain requests for admissions that Defendant propounded on Plaintiffs. Defendant contends he proved the matters set forth in the requests for admissions at trial. Defendant does not, however, address the issue of whether Plaintiffs' denial of the requests for admissions was unreasonable. (See Motion for Attorneys' Fees, pp. 16-17.) Accordingly, Defendant fails to show he is entitled to recover fees under Code of Civil Procedure section 2033.420.

Accordingly, Defendant's motion for attorneys' fees is DENIED.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 17, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 17, 2026 TRIAL

DATE: Trial complete

CASE: 3800 West Sixth Street, LLC, et al. v.

Steven C. Kim., et al.

CASE

NO.: 22STCV21799

MOTION TO

TAX COSTS

MOVING PARTY/PARTIES: Plaintiff

Leo Lee

RESPONDING PARTY/PARTIES: Defendants Susan Ahn and Serrano & Sixth

LLC

PROOF OF SERVICE: The Court continued the motion to this date in its

order of August 26, 2026.

CASE HISTORY:

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July 6, 2022: Complaint filed.

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January 5, 2023: First amended

complaint filed.

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November 14, 2024: Defendants'

motions for summary judgment denied.

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September 4, 2025: Court trial

commenced.

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October 1, 2025: Court trial

concluded.

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February 13, 2026: Court issued

statement of decision after trial in favor of Defendants.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Defendants

Susan Ahn and Serrano & Sixth LLC ("Defendants") prevailed at trial against

Plaintiff Leo Lee ("Plaintiff").

Plaintiff moves to tax the costs on the memorandum of costs Defendants

served. Defendants oppose the motion.

After Plaintiff filed this motion, Defendants filed

a supplemental memorandum of costs, in which Defendants seek to recover

additional costs. The Court's clerk gave

notice of entry of judgment electronically on February 13, 2026. As such, Defendants had until March 3, 2026

to file their memorandum of costs. (Cal.

Rules of Court, rule 3.1700, subd. (a)(1).)

Accordingly, the Court disregards the untimely supplemental memorandum of costs.

TENTATIVE RULING:

Plaintiff's

motion to tax costs in GRANTED in part.

Moving

party to give notice.

DISCUSSION:

Motion to tax costs

Code

of Civil Procedure section 1033.5, subdivision (a) sets forth items that are

allowable as costs. Allowable costs

under Section 1033.5 must be "reasonably necessary to the conduct of this

litigation rather than merely convenient or beneficial to its preparation" and

"reasonable in amount." (Code Civ.

Proc., § 1033.5, subds. (c)(2), (3).)

"Items not mentioned in [Section 1033.5] and items assessed upon

application may be allowed or denied in the court's discretion." (Id.,

subd. (c)(4).)

On

a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) “The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seeever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

Court

reporter fees

Defendants

seek \$17,147.49 in court reporter fees.

As Plaintiff points out, this figure includes transcript costs, which

are not recoverable as a matter of law.

The Court did not order any transcripts in this case. (See Code Civ. Proc., § 1033.5, subd.

(a)(9).) As such, the costs for

transcripts are not recoverable. Defendants

may recover fees Defendants incurred for the presence of a court reporter. Court reporter fees are recoverable as

otherwise provided by law. (Code Civ.

Proc., § 1033.5, subd. (a)(11).) Government Code section 68086 permits a

prevailing party to recover costs “for the presence of a certified shorthand

reporter[.]” (Gov. Code, § 68086, subd.

(d)(2).) Defendants’ evidence in

opposition shows that Defendants incurred \$650 per appearance for 18

appearances by the court reporter.

(Declaration of Paul A. de Lorimier, Exhibit F.) As such, Defendants may recover \$11,700 in

court reporter fees. The Court grants

the motion to tax the remaining \$5,447.49 in costs associated with the court

reporter.

Copies

Defendants

seek to recover \$1,058 for copies.

“Models and enlargements of exhibits and photocopies of exhibits may be

allowed if they were reasonably helpful to aid the trier of fact.” (Code Civ. Proc., § 1033.5, subd.

(a)(13).) Defendants cannot recover for

copies other than for models or exhibits at trial. Defendants advance evidence that the costs

they seek to recover were for the preparation of trial binders. (Declaration of Paul A. de Lorimier, ¶ 4,

Exhibit D.) Accordingly, these costs are

recoverable.

Jury

fees

Defendant

seeks to recover jury fees in the amount of \$150. The parties waived jury, and tried this case

to the Court. As such, Defendants bear

the burden to show these costs are recoverable. In opposition, Defendants argue that

Defendants posted the jury fees, as the parties initially sought jury

trial. However, as the case did not

proceed to trial by jury, Defendants should have sought a refund of the jury

fees. (See Code Civ Proc., §

631.3,) The motion to tax these costs is

granted.

Deposition

costs

Defendants

seek to recover \$4,431.70 in deposition costs.

Defendants may recover the costs of deposition transcripts. (See Code Civ. Proc., § 1033.5, subd.

(a)(3).) However, Plaintiff advances

evidence that Defendants did not order a copy of every deposition transcript in

this case, but rather shared transcripts with co-Defendants. (Declaration of Michael C. Lieb, ¶ 2.) As such, Plaintiff meets his burden to show

that the costs Defendants seek do not reflect the costs Defendants incurred for

transcripts. In opposition, Defendants

advance evidence that Defendants seek to recover only for copies Defendants

obtained. (Declaration of Paul A. de

Lorimier, Exhibit C.) Defendants'

evidence therefore shows that these costs are recoverable. The motion to tax these costs is denied.

Accordingly,

Plaintiff's motion to tax costs is GRANTED in part.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 17, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by

contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later

than 4:00 p.m. the day before the hearing. All interested parties

must be copied on the email. It should be noted that if you submit

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appears. By submitting on the tentative you have, in essence, waived your right

to be present at the hearing, and you should be aware that the court may not

adopt the tentative, and may issue an order which modifies the tentative ruling

in whole or in part.